IN THE NATIONAL COMPANYLAW TRIBUNAL: NEW DELHI
SPECIAL BENCH

ITEM No. 130
(CAA)-34(PB)/2018

IN THE MATTER OF:
Intertroll India Constants Pvt. Ltd. & Ors.
With
Intertoll ICS India Pvt. Ltd. .... Applicant / petitioner

SECTION:
Under Section 230-232

Order delivered on 04.02.2019

Coram:
CHIEF JUSTICE (RTD.) M. M. KUMAR
HON'BLE PRESIDENT

SH. PRADEEP R. SETHI
HON'BLE MEMBER (TECHNICAL)

PRESENTS:

For the Petitioner(s):-	Mr. Rajesh Kumar Malhotra & Mr. Dalip Kr. Malhotra, Advs.
For the RD(ND)(s):-	Mr. C. Balooni, Company Prosecutor
For the OL(s):-	Mr. Shubham Pandey, Adv.
For the ITD(s):-	Ms. Lakshmi Gurung, Standing Counsel

ORDER

The RD in para 4 C of their report dated 05.07.2018 and 10.08.2018 have pointed out that in the financial statement for 2016-17 it has been reported that long term loan and advances were given to related party amounting to Rs. 2,20,953/- as on 31.03.2017. No further disclosure as per the Accounting Standard issued under section 133 have been made. The audit report filed before the RD was incomplete which violated section 137 as some of the portion was omitted.

The aforesaid objection was again reiterated in the affidavit dated 10.08.2018. In para 4C, a counter affidavit has been filed by

placing on record the complete audited financial statement but the basic objection stare in the face. The petitioner shall take effective steps to satisfied the objection raised by the RD.

The objection raised by the Income Tax Department stands satisfied as the demand raised stands paid.

List for further consideration on 11.03.2019.

-Sd-

(M.M.KUMAR)
PRESIDENT

-Sd-

(PRADEEP R. SETHI)
MEMBER(TECHNICAL)

04.02.2019
Ritu Sharma